BRENDAN NGWA NFORBI
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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. **SANTIAGO MEZA-GONZALEZ (CHP Badge #023295), in his individual capacity; JOSE MELANO (CHP Badge #023054), in his individual capacity; and DOES 1 through 10, inclusive,** Defendants.	Case No. _____ **COMPLAINT FOR DAMAGES** (42 U.S.C. § 1983) (1) 4th Amend. -- Unlawful Entry; (2) 4th Amend. -- Unlawful Search; (3) 4th Amend. -- Unlawful Arrest; (4) 4th Amend. -- Judicial Deception; (5) 14th Amend. -- Fabrication of Evidence; (6) 1st Amend. -- Retaliation. **[DEMAND FOR JURY TRIAL]**

Plaintiff BRENDAN NGWA NFORBI, appearing in propria persona, brings this action against Defendants SANTIAGO MEZA-GONZALEZ and JOSE MELANO, in their individual capacities, and alleges as follows:

INTRODUCTION

1. This is a civil rights action under 42 U.S.C. section 1983 arising out of a warrantless roadside encounter that escalated -- in less than two hours, and in defiance of the officers' own contemporaneous audio-video recording -- into an unlawful vehicle entry, a suspicionless search, a false arrest predicated on a fabricated criminal-investigative hypothesis, a coerced and

fraudulently justified blood extraction, and multiple days of custodial confinement. Every material representation the arresting officer later swore to under penalty of perjury -- to a magistrate, to the Department of Motor Vehicles, and to the Alameda County District Attorney -- is directly contradicted by the California Highway Patrol's own dashcam recording of the same encounter, which has been in CHP's exclusive custody since the moment it was created.

2. The incident occurred on November 1, 2024, on the right shoulder of Interstate 580 East, just west of Isabel Avenue, in Livermore, Alameda County, California -- within the Northern District of California and within the intra-district assignment area of the Oakland/San Francisco Division under Civil L.R. 3-2(d). Plaintiff Brendan Ngwa Nforbi, a commercial truck driver holding a valid Class A Commercial Driver's License with doubles/triples and tank vehicle endorsements, had pulled his rental Tesla Model Y to the shoulder to sleep off fatigue -- exactly what federal Hours-of-Service rules and CHP's own public safety messaging instruct commercial drivers to do. He was doing precisely what a responsible commercial driver is supposed to do.

3. Defendants Officer Santiago Meza-Gonzalez (CHP Badge #023295) and Officer Jose Melano (CHP Badge #023054) approached under the guise of a welfare check. Within fourteen seconds of dashcam audio activation -- and before either officer had spoken a single word to Plaintiff, observed Plaintiff, or conducted anything remotely resembling a welfare assessment -- Officer Melano audibly announced a criminal-investigative hypothesis on the recording: "I think it's booze." That pre-contact hypothesis, formed on nothing more than the presence of a cup visible through the window of a lawfully parked vehicle, controlled every step of what followed.

4. Within minutes, Officer Melano opened the locked front passenger door of Plaintiff's vehicle without consent, without a warrant, and without any exigency -- and before Plaintiff had even fully awakened. Within a few minutes more, Officer Melano seized a cup from the vehicle's interior, smelled it, and identified its contents in unmistakable terms on the recording: "Is it water? No this is piss. This is pee." And again: "I'm telling you it's piss. It smells like piss." The

single articulable basis for the officers' entire investigation had, by their own contemporaneous words captured on their own recording, been conclusively dispelled.

5. Rather than terminate the encounter, the officers continued. They prolonged the detention, ordered Plaintiff out of the vehicle onto uneven ground, put him through field sobriety exercises Officer Melano himself acknowledged on the recording could not be reliably administered in that environment, and then -- when Plaintiff exercised his statutory right to decline a preliminary alcohol screening ("PAS") test that Officer Meza-Gonzalez had just told him was voluntary -- Meza-Gonzalez placed him under arrest for driving under the influence. There is no audible expression of an alcohol odor, at any point, from either officer on the entire dashcam recording. There is no observation of any "slurring," "confusion," or "disorientation" recorded contemporaneously with the encounter. Plaintiff was, on the recording, coherent, articulate, and oriented -- spelling his surname on request, discussing his rental car's alternator, explaining CDL fatigue protocols, and reading distant highway signage.

6. Officer Meza-Gonzalez then prepared, and executed under penalty of perjury, a sworn law enforcement report (CHP Case No. RJ68845) and a DS-367 Age 21 and Older Officer's Statement submitted to DMV. Each contains at least four material fabrications directly contradicted by the dashcam recording in CHP's own custody: (a) a fabricated "strong distinct odor of an alcoholic beverage" that neither officer ever verbalized during the encounter; (b) a false characterization of Plaintiff's speech as "slurred"; (c) a false claim that Plaintiff was "very confused and disoriented"; and (d) a false checkbox entry that a "beverage" was present in the vehicle -- when the only liquid the officers ever found or discussed was, in Officer Melano's own words, "piss." These fabrications were not incidental. They were the sole basis for (i) a search warrant compelling a magistrate to authorize the involuntary extraction of Plaintiff's blood at the Dublin CHP office; (ii) a DMV administrative-per-se suspension that stripped Plaintiff of his commercial driving privileges for a full year; and (iii) a parole hold that extended Plaintiff's incarceration at Santa Rita Jail. Without the fabrications, the affidavit would have contained no

probable cause to arrest, none to search, and none to justify a bodily intrusion.

7. CHP itself has already conceded the arrest was unlawful. On November 5, 2024 -- four days after the incident -- the Dublin CHP issued a formal Detention Certificate under California Penal Code section 851.6, referencing CHP Case No. RJ68845, expressly reclassifying Plaintiff's taking into custody as "a detention only, not an arrest," and releasing him under Penal Code section 849(b)(1) for "insufficient grounds for making a criminal complaint." By operation of Penal Code sections 849(c) and 849.5, the encounter "shall not be deemed an arrest, but a detention only." The Alameda County District Attorney, to whom CHP recommended charges under Vehicle Code sections 23152(a), 23152(b), and 23578, declined to file any accusatory pleading. Both the arresting agency and the prosecuting authority have formally acknowledged that the arrest lacked evidentiary basis.

8. A related civil-rights complaint filed by Plaintiff in this District (N.D. Cal. Case No. 4:26-cv-05953-ASK), resting on the same November 1, 2024 factual record -- including the same dashcam contradictions of the same sworn CHP report -- has already been screened by United States Magistrate Judge Ambadas S. Krishnan under 28 U.S.C. section 1915(e). On June 29, 2026, Judge Krishnan found the allegations sufficient to proceed past screening. A coordinate Article III judge, on this same evidentiary record, has therefore already concluded that the underlying constitutional claims are plausible. Plaintiff respectfully submits that the same conclusion follows a fortiori as to the officers who authored the recording being contradicted. The alias relationship between the caption in that action and the caption in this one is explained at paragraphs 50-51, below.

JURISDICTION AND VENUE

9. This Court has original subject-matter jurisdiction over Plaintiff's federal claims under 28 U.S.C. section 1331 (federal question) and 28 U.S.C. section 1343(a)(3) and (a)(4) (civil

rights), because those claims arise under the First, Fourth, and Fourteenth Amendments to the United States Constitution, as enforced through 42 U.S.C. section 1983.

10. Venue is proper in the Northern District of California under 28 U.S.C. section 1391(b)(2), because a substantial part -- indeed, the entirety -- of the events and omissions giving rise to Plaintiff's claims occurred in this District, on Interstate 580 East in Livermore, Alameda County, California, and at the CHP Dublin Area office and Santa Rita Jail in Dublin, Alameda County, California.

11. INTRADISTRICT ASSIGNMENT. Under Civil Local Rule 3-2(c) and (d), this action arose in Alameda County and is therefore appropriately assigned to the San Francisco Division or Oakland Division of this Court.

PARTIES

12. Plaintiff BRENDAN NGWA NFORBI is, and at all times relevant herein was, a natural person and a resident of the County of San Joaquin, State of California. Plaintiff is a commercial truck driver holding a valid California Class A Commercial Driver's License (No. F7953179), with endorsements for doubles/triples and tank vehicles.

13. Defendant SANTIAGO MEZA-GONZALEZ (CHP Badge #023295) is, and at all times relevant herein was, a sworn peace officer employed by the California Highway Patrol and assigned to the CHP Dublin Area, 4999 Gleason Drive, Dublin, California 94568. At all times relevant, Meza-Gonzalez was acting under color of state law within the meaning of 42 U.S.C. section 1983 and within the course and scope of his employment as a CHP officer. Meza-Gonzalez is sued in his individual capacity only.

14. Defendant JOSE MELANO (CHP Badge #023054) is, and at all times relevant herein

was, a sworn peace officer employed by the California Highway Patrol and assigned to the CHP Dublin Area, 4999 Gleason Drive, Dublin, California 94568. At all times relevant, Melano was acting under color of state law within the meaning of 42 U.S.C. section 1983 and within the course and scope of his employment as a CHP officer. Melano is sued in his individual capacity only.

15. The true names and capacities, whether individual, corporate, associate, or otherwise, of Defendants DOES 1 through 10 are presently unknown to Plaintiff, despite reasonable investigation. On information and belief, each fictitiously named Defendant is a CHP officer, supervisor, evidence custodian, or other person who: (a) participated directly in the November 1, 2024 detention, arrest, search, seizure, bodily intrusion, or fabricated documentation of Plaintiff; (b) approved, ratified, adopted, or acquiesced in the wrongful conduct alleged herein; or (c) knew of the wrongful conduct and failed to intervene or correct it. Each DOE Defendant is sued in his or her individual capacity only. Plaintiff will seek leave to amend this Complaint to state the true names and capacities of the DOE Defendants when ascertained.

FACTUAL ALLEGATIONS

A. Plaintiff's Occupation, Licensure, and the Reason He Was Lawfully Parked on the Shoulder

16. At all relevant times, Plaintiff held a valid California Class A Commercial Driver's License (No. F7953179) with endorsements for doubles/triples and tank vehicles. His livelihood depended on his CDL and his ability to drive commercial vehicles.

17. On the evening of October 31, 2024, and into the early hours of November 1, 2024, Plaintiff was driving a rented gray Tesla Model Y eastbound on Interstate 580 in Alameda County, California. Feeling fatigued, and mindful of federal Hours-of-Service principles and

CHP's own public safety guidance that fatigued drivers should pull over rather than continue on the highway, Plaintiff exited active travel lanes and pulled his vehicle onto the right shoulder of I-580 East, just west of the Isabel Avenue exit in Livermore. He then rested in the driver's seat with the vehicle stationary. He was not driving. He was not in volitional control of the vehicle within the meaning of Mercer v. DMV, 53 Cal.3d 753 (1991), and he had committed no observable Vehicle Code violation.

B. The Dashcam Recording: A Complete, Time-Stamped Contemporaneous Audio-Video Record in CHP's Own Custody

18. At all times relevant to this encounter, Defendants were operating a CHP patrol vehicle equipped with in-car audio-video recording equipment. That equipment activated at approximately 00:54:36 hours and recorded continuously through approximately 01:57:10 hours -- capturing the entirety of the officers' pre-contact observations, their approach and entry into Plaintiff's vehicle, every word each officer spoke both to Plaintiff and to each other, every question and answer, the field-sobriety exercises, the PAS advisement and refusal, the arrest, and the transport thereafter. The recording (CHP Case No. RJ68845; duration 00:54:36-01:57:10) has been in CHP's exclusive custody at all times since it was created.

19. The dashcam recording is not disputed. It is not ambiguous. It is not incomplete in any material respect. And it directly contradicts, in Defendants' own contemporaneous words and observable conduct, every material representation Defendant Meza-Gonzalez later swore to in the DS-367 Officer's Statement and the CHP arrest-investigation report he executed under penalty of perjury. Selected time-stamped excerpts follow in the paragraphs below.

C. Pre-Contact Criminal Hypothesis: Officer Melano Announces "I think it's booze" Before Contact

20. At timestamp 00:55:37, dashcam audio activates as the CHP patrol vehicle comes to a stop behind Plaintiff's parked Tesla.

21. At timestamp 00:55:53, before either officer has approached the vehicle, Officer Melano remarks on the recording: "It's a rental. Huh." That is a categorization statement about the vehicle, not a welfare observation about its occupant.

22. At timestamp 00:56:05, both officers approach and peer into Plaintiff's vehicle windows with flashlights, while Plaintiff remains asleep inside. This is investigative conduct -- searching the passenger cabin from outside the vehicle with directed illumination -- rather than a caretaking response to any observed medical emergency.

23. At timestamp 00:56:07, Officer Melano volunteers on the recording: "It wasn't here earlier when we passed by." That statement establishes that the officers had been patrolling this stretch of highway and had personally observed the same location without Plaintiff's vehicle present. It is not a welfare observation.

24. At timestamp 00:56:09 -- approximately fourteen seconds after audio activation, before either officer has spoken a single word to Plaintiff, before either officer has observed anything about Plaintiff's condition, and before Plaintiff is even awake -- Officer Melano audibly announces a criminal-investigative hypothesis on the recording: "I think it's booze."

25. That pre-contact hypothesis was formed on nothing more than the presence of a cup visible through the window of a lawfully parked rental vehicle whose adult driver was resting in the driver's seat on the shoulder of an interstate highway in the early morning hours. It is not a

welfare observation. It is not probable cause. It is not even reasonable suspicion. It is a guess -- and one that Officer Melano's own words minutes later would show was wrong.

D. Warrantless Entry: Officer Melano Opens the Locked Passenger Door Without Consent or Exigency

26. At timestamp 00:56:43, Officer Melano opens the front passenger-side door of Plaintiff's vehicle. Plaintiff is still asleep. Plaintiff has not consented, expressly or by implication, to entry into the vehicle. There is no warrant. There is no exigent circumstance -- no observed medical emergency, no ongoing crime, no fire, no destruction of evidence, no hot pursuit. There is no automobile-exception probable cause independent of Officer Melano's own "I think it's booze" guess. The door is opened simply because Officer Melano decides to open it.

27. This entry into a constitutionally protected area occurred without consent, without a warrant, and without any recognized exception to the warrant requirement. See Kentucky v. King, 563 U.S. 452, 459 (2011) (warrantless entry "generally unreasonable"); Collins v. Virginia, 584 U.S. 586, 592 (2018) (automobile exception does not authorize entry into constitutionally protected areas without probable cause); Payton v. New York, 445 U.S. 573, 585-90 (1980) (physical entry is chief evil against which the Fourth Amendment is directed).

E. The "Booze" Hypothesis is Conclusively Dispelled: Officer Melano Contemporaneously Identifies the Cup as Urine

28. Between timestamps 00:58:49 and 00:59:07, Officer Melano reaches into the vehicle, seizes the cup that had been visible from outside, smells it, and identifies its contents on the recording. His exact words, captured on CHP audio:

Melano: "Is it water? No this is piss. This is pee."

Plaintiff: "I don't know what that is."

Melano: "I'm telling you it's piss. It smells like piss."

29. Those statements are unambiguous. The single articulable basis for the officers' criminal investigation -- Officer Melano's pre-contact "I think it's booze" guess -- had, by his own contemporaneous words captured on his own recording, been conclusively dispelled. Whatever suspicion the cup had generated ceased to exist the moment Officer Melano identified its contents as urine and stated so aloud to his partner.

30. Under the Fourth Amendment, once the sole articulable basis for a detention is dispelled, the detention must terminate. See Rodriguez v. United States, 575 U.S. 348, 355 (2015) (mission of a stop controls its lawful duration); Illinois v. Caballes, 543 U.S. 405, 407 (2005). At timestamp 00:59:07, the mission of Defendants' encounter with Plaintiff was over -- there was no ongoing crime, there was no evidence of intoxication, there was only a fatigued commercial driver, a rental car, and an empty urine cup. Defendants chose to continue anyway.

F. Prolonged Detention, Coerced FSTs on Uneven Ground,
and Officer Melano's Own Acknowledgment of Unreliability

31. Instead of terminating the encounter, Defendants ordered Plaintiff out of the vehicle. They put him through a series of field sobriety exercises on the shoulder of an active interstate highway -- a location Officer Melano himself acknowledged on the recording was not suitable for reliable FST administration, causing him to decline to administer certain balance-dependent exercises due to the uneven ground.

32. Throughout the encounter, dashcam audio captures Plaintiff speaking coherently and

articulately. Plaintiff correctly identifies his location as Livermore, reads distant highway signage, discusses the mechanics of the Tesla rental (including alternator design), explains his CDL fatigue protocol, and spells his surname on request without difficulty. There is no audible slur. There is no confusion. There is no disorientation. There is no verbalized alcohol odor -- not from Officer Melano, and not from Officer Meza-Gonzalez -- at any point in more than two hours of continuous recording.

G. Officer Meza-Gonzalez Confirms PAS Is Voluntary; Plaintiff Refuses; Meza-Gonzalez Arrests Him Immediately

33. At timestamp 01:10:54, Officer Meza-Gonzalez advises Plaintiff on the recording that the preliminary alcohol screening ("PAS") test is voluntary: "You're not required to do this." That advisement is legally accurate. Under California Vehicle Code section 23612(i), a PAS test is a preliminary investigative tool, not a mandatory chemical test, and a driver not on DUI probation may lawfully decline it without any statutory consequence.

34. Plaintiff exercised his statutory right and declined the PAS test.

35. At timestamp 01:11:15 through 01:11:33, and immediately upon Plaintiff's exercise of his statutory right to refuse the voluntary PAS test, Officer Meza-Gonzalez placed Plaintiff under arrest. The temporal proximity is captured on the recording: refusal, then arrest, in the span of eighteen seconds.

36. The arrest was not preceded by any newly discovered probable cause. Nothing changed between the moments before Plaintiff refused and the moments after. The trigger for the arrest was the refusal itself. That is retaliatory arrest, in real time, on CHP's own recording.

H. The Sworn DS-367 and Arrest-Investigation Report:

Four Material Fabrications, Each Contradicted by CHP's Own Dashcam

37. Following the arrest, Defendant Meza-Gonzalez prepared, executed under penalty of perjury, and submitted to DMV, to the magistrate reviewing the blood-draw warrant application, and to the Alameda County District Attorney: (a) a DS-367 Age 21 and Older Officer's Statement (California Vehicle Code sections 13353, 13353.1, 13353.2 & 13389); and (b) CHP Arrest-Investigation Report Case No. RJ68845. Each document was signed by Meza-Gonzalez in his capacity as arresting officer. Officer Melano contributed to and adopted the observations reflected in those documents.

38. Each document contains at least four material representations that are conclusively disproven by the dashcam recording in CHP's own custody:

a. FABRICATION #1 -- "Strong distinct odor of an alcoholic beverage." The DS-367 and arrest report state Meza-Gonzalez detected a "strong distinct odor of an alcoholic beverage" from Plaintiff's breath and person. Neither Meza-Gonzalez nor Melano ever verbalizes any observation of an alcohol odor at any point in the two-hour recording. Officers routinely narrate significant observations to each other on the dashcam -- Melano narrates his "I think it's booze" guess (00:56:09), his "it's a rental" categorization (00:55:53), and his "this is piss" identification (00:58:49-00:59:07). At no point does either officer narrate any observation of an alcohol odor emanating from Plaintiff. The claim is fabricated.

b. FABRICATION #2 -- "Slurred" speech. The DS-367 and arrest report characterize Plaintiff's speech as "slurred." The dashcam records Plaintiff, in extended coherent conversation, spelling his last name letter-by-letter on request, discussing the alternator behavior of the rental Tesla, and explaining his CDL fatigue protocols in fluent English.

The characterization of that speech as "slurred" is fabricated.

c. FABRICATION #3 -- Plaintiff was "very confused and disoriented." The arrest report states that Plaintiff "seemed very confused and disoriented." The dashcam records Plaintiff correctly identifying his location (Livermore), reading distant highway signs, and orienting himself to the encounter without difficulty. The characterization is fabricated.

d. FABRICATION #4 -- "Beverage Present: Yes." The DS-367 contains a checkbox entry for "Beverage Present: Yes," indicating an alcoholic beverage was found associated with Plaintiff or his vehicle. The only liquid the officers found and discussed on the recording was, in Officer Melano's own words, "piss" -- urine, not a beverage. The checkbox entry is fabricated.

39. The arrest report also materially omits: (a) that the suspected alcohol in the cup was contemporaneously confirmed to be urine; (b) that Officer Melano himself declined to administer certain FSTs due to uneven ground; (c) that Officer Meza-Gonzalez expressly advised Plaintiff the PAS test was voluntary; (d) that the arrest was effected immediately upon Plaintiff's exercise of his statutory right to refuse the voluntary PAS; and (e) that Plaintiff had not been observed driving or in volitional control of the vehicle. These omissions are as material as the affirmative fabrications: they concealed from the reviewing magistrate the exculpatory facts on the officers' own recording that would have precluded a finding of probable cause.

40. The fabrications and omissions are not attributable to differences of professional interpretation. The dashcam is either audible or it is not; a slur is either present in the recorded audio or it is not; an alcohol odor is either narrated by an officer to his partner or it is not. On this record, the fabrications are objectively provable against the recording.

I. The Blood-Draw Warrant Was Procured By Judicial Deception; The Forced Extraction at Dublin CHP

41. Based on the false statements and misleading omissions in the DS-367 and arrest-investigation report, a magistrate authorized a search warrant permitting the involuntary extraction of Plaintiff's blood. Defendant Meza-Gonzalez, or a fellow CHP officer relying on his sworn statements, then transported Plaintiff to the CHP Dublin Area office and caused a blood sample to be forcibly drawn from Plaintiff's body pursuant to that warrant.

42. The affidavit supporting the blood warrant, stripped of the four fabrications identified in paragraph 38 above and supplemented with the omitted facts identified in paragraph 39, would not have supported probable cause. Without the false alcohol odor, without the false "slurred speech," without the false "confused and disoriented" characterization, and without the false "beverage present" checkbox, the affidavit would have reflected only: (i) a commercial driver lawfully parked on the shoulder; (ii) an officer's ex ante guess that a visible cup contained booze; (iii) that same officer's contemporaneous identification of the cup's contents as urine; (iv) coherent, oriented conversation; and (v) refusal of a voluntary test. Those facts do not add up to probable cause under any Fourth Amendment standard.

43. This is a paradigmatic Franks/Chism claim. See Franks v. Delaware, 438 U.S. 154, 155-56 (1978); Chism v. Washington State, 661 F.3d 380, 386 (9th Cir. 2011) (civil analog: (1) deliberate or reckless falsehoods or omissions material to probable cause; (2) affidavit stripped of falsehoods and supplemented with omitted material facts would not support probable cause). Both elements are met.

J. Booking, Extended Detention at Santa Rita Jail,
Parole Hold Predicated on the Fabricated Report

44. Following the blood extraction, Plaintiff was transported to and booked into Santa Rita Jail in Dublin, California. On the strength of the fabricated arrest report, a parole hold was placed against Plaintiff -- extending his custodial confinement beyond the initial arrest and depriving him of liberty for additional days. The parole hold, like the blood warrant, was procured by the fabricated report.

K. CHP's Own Formal Concession: The November 5, 2024
Penal Code Section 851.6 Detention Certificate

45. On November 5, 2024 -- four days after the arrest -- the Dublin CHP issued a formal Detention Certificate referencing CHP Case No. RJ68845. The Certificate is signed by the releasing officer (Badge #022511) and states, in mandatory statutory language, that Plaintiff's taking into custody "was a detention only, not an arrest," and that Plaintiff was released pursuant to California Penal Code section 849(b)(1) for "insufficient grounds for making a criminal complaint."

46. The statutory consequences of a Penal Code section 849(b)(1) release are non-discretionary. Penal Code section 849(c) provides: "Thereafter, the arrest shall not be deemed an arrest, but a detention only." Penal Code section 849.5 provides identically for cases in which no accusatory pleading is filed. Penal Code section 851.6(a) mandates issuance of a certificate "describing the action as a detention."

47. CHP's issuance of this Detention Certificate constitutes a formal, contemporaneous admission by the arresting agency itself that the arrest lacked probable cause and was unlawful from its inception. It is not an inference. It is CHP's own written concession, drafted by CHP,

signed by a CHP officer, on official CHP letterhead, referencing the same case number as the fabricated arrest report.

L. The Alameda County District Attorney's Declination:
The Prosecutorial Authority Also Rejected the Arrest

48. CHP recommended charges to the Alameda County District Attorney under Vehicle Code sections 23152(a), 23152(b), and 23578. The Alameda County District Attorney reviewed the referral and declined to file any accusatory pleading of any kind against Plaintiff. No criminal case was ever initiated arising from the November 1, 2024 incident.

49. Both the arresting agency (CHP) and the prosecuting authority (the Alameda County District Attorney) have therefore formally rejected the arrest as lacking any evidentiary basis. Their formal, contemporaneous positions align: there were insufficient grounds to prosecute Plaintiff for anything arising from November 1, 2024.

M. Judge Krishnan's June 29, 2026 Screening Order
in the Related Serrato Action; Alias Relationship

50. On June 17, 2026, Plaintiff filed a related civil-rights complaint in this District against CHP Dublin Area Commander G. Serrato, arising from Serrato's April 20, 2026 denial of Plaintiff's request for a U Visa certification -- a denial that was itself predicated on Serrato's refusal to engage with the same dashcam evidence and Penal Code section 851.6 Detention Certificate at issue here. That action is styled Newanforbi v. Serrato, N.D. Cal. Case No. 4:26-cv-05953-ASK, assigned to United States Magistrate Judge Ambadas S. Krishnan (with plaintiff consent), Oakland Division.

51. ALIAS RELATIONSHIP. For clarity of the record, Plaintiff has, in prior court and

administrative proceedings arising out of the November 1, 2024 incident, appeared under the prior name variant "Brendan Ngehsi Newanforbi." That is the caption under which the Serrato action referenced in paragraph 50 was filed, and the caption used in Plaintiff's DMV and other administrative proceedings. "Brendan Ngehsi Newanforbi" and "Brendan Ngwa Nforbi" refer to the same individual -- the Plaintiff in this action -- and the change reflects Plaintiff's own subsequent preference to appear under "Brendan Ngwa Nforbi." Except where quoting from a prior filing, order, or record, this Complaint uses the name "Brendan Ngwa Nforbi" throughout. This alias note is provided to prevent any doubt about the identity of the Plaintiff and the connection between this action and the Serrato action; it is not intended to expand the scope of the pleadings in this case.

52. On June 29, 2026, Judge Krishnan (a) granted Plaintiff's application to proceed in forma pauperis, (b) screened the complaint pursuant to 28 U.S.C. section 1915(e), and (c) concluded that the operative complaint "is sufficient" to proceed past the section 1915 screening stage. The Court ordered the Clerk to issue summons and directed service of process by the United States Marshal.

53. A coordinate Article III judge in this District has therefore already concluded, on a substantially overlapping factual record -- including the same dashcam contradictions of the same sworn CHP report and the same Penal Code section 851.6 Detention Certificate -- that Plaintiff's allegations state a plausible claim. That determination is not binding on this Court, but it is persuasive evidence that the pleading meets the threshold Federal Rule of Civil Procedure 12(b)(6) and Iqbal/Twombly plausibility standard as to the fabrication and false-arrest theories central to this action.

N. Consequential Damages: DMV Suspension, Loss of Commercial Driving Privileges, Loss of Income

54. Notwithstanding the section 851.6 Detention Certificate and the District Attorney's declination, the California Department of Motor Vehicles instituted administrative-per-se suspension proceedings against Plaintiff based on the DS-367 Officer's Statement Defendant Meza-Gonzalez had executed under penalty of perjury. Following an APS hearing on January 24, 2025, DMV suspended Plaintiff's driving privileges for one year, effective February 20, 2025 through February 19, 2026. Because Plaintiff holds a Class A Commercial Driver's License, that suspension was accompanied by a one-year commercial disqualification under Vehicle Code section 15300.

55. For the full year of the suspension, Plaintiff was barred from earning his living as a commercial truck driver. Plaintiff typically works 11.5-hour shifts, five days per week, in the commercial trucking sector. The loss of earnings during the suspension period is substantial, and the disqualification event on his commercial driving record continues to inflict career harm.

56. Plaintiff has also suffered, and continues to suffer: (a) loss of liberty from unlawful detention and confinement; (b) physical pain and mental suffering from handcuffing, restraint, and forced blood extraction; (c) severe emotional distress, including anxiety, humiliation, sleep disturbance, and continuing dignitary injury from having been branded a drunk driver by the fabricated sworn statements of state peace officers; (d) reputational harm and damage to professional standing; (e) attorneys' fees and costs incurred; (f) vehicle towing and impound fees; and (g) other economic losses to be proven at trial. Without the fabricated DS-367, DMV would have lacked its statutory predicate under Vehicle Code section 13353 and could not have sustained the suspension; the DMV disqualification is a direct and foreseeable consequence of Defendant Meza-Gonzalez's execution of the fabricated statement under penalty of perjury.

FIRST CAUSE OF ACTION

Fourth Amendment -- Unlawful Warrantless Entry

(42 U.S.C. § 1983 -- Against Defendant Melano and DOES 1-10)

57. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

58. The Fourth Amendment to the United States Constitution, as applied to the states through the Fourteenth Amendment, guarantees "[t]he right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures." U.S. Const. amend. IV. A warrantless entry into a constitutionally protected area is presumptively unreasonable and violates the Fourth Amendment absent consent or a recognized exception. Payton v. New York, 445 U.S. 573, 585-90 (1980); Kentucky v. King, 563 U.S. 452, 459 (2011).

59. The interior of a passenger automobile, and the closed compartments and containers within it, are constitutionally protected areas within the meaning of the Fourth Amendment. See Collins v. Virginia, 584 U.S. 586, 592-93 (2018); California v. Carney, 471 U.S. 386, 390-93 (1985); New York v. Class, 475 U.S. 106, 114-15 (1986).

60. At timestamp 00:56:43 on the dashcam recording, Defendant Melano opened the locked front passenger-side door of Plaintiff's vehicle -- physically entering a constitutionally protected area -- without Plaintiff's consent, without a warrant, and without any exigent circumstance recognized under Fourth Amendment jurisprudence. Plaintiff was, at that moment, asleep. No medical emergency was observable. No crime was being committed. No fire, no destruction of evidence, no hot pursuit was underway. The automobile exception did not apply, because it did not authorize entry (as opposed to search of a lawfully accessible area) and because no probable cause independent of Melano's pre-contact "I think it's booze" guess existed. See

Collins, 584 U.S. at 592-93.

61. Even if a bona-fide community caretaking rationale had been in play, the community caretaking exception does not authorize warrantless entry of a private vehicle absent an imminent, articulable threat to public safety not present here. See Caniglia v. Strom, 593 U.S. 194, 197-99 (2021) (community caretaking is not a standalone doctrine authorizing warrantless entry). Defendants' unilateral opening of the door was investigative, not caretaking -- as their own contemporaneous words on the recording ("It's a rental," "It wasn't here earlier," "I think it's booze") establish.

62. Defendant Melano's conduct was intentional and objectively unreasonable. As a direct and proximate result of Defendant Melano's violation of the Fourth Amendment, Plaintiff has suffered the damages alleged in paragraphs 54-56 above.

SECOND CAUSE OF ACTION

Fourth Amendment -- Unlawful Search
(42 U.S.C. § 1983 -- Against Both Defendants and DOES 1-10)

63. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

64. The Fourth Amendment prohibits unreasonable searches. A warrantless search of a lawfully parked passenger vehicle is unreasonable absent consent, exigent circumstances, or the automobile exception grounded in independent probable cause. See Arizona v. Gant, 556 U.S. 332, 343-44 (2009); California v. Acevedo, 500 U.S. 565, 580 (1991).

65. Following Defendant Melano's warrantless entry, both Defendants conducted a further

search of Plaintiff's vehicle -- including the interior cabin, the center console, and closed containers therein. That search was without a warrant, without consent, and without exigent circumstances. Any theoretical probable cause based on Officer Melano's pre-contact "I think it's booze" guess dissipated the moment Melano identified the cup's contents as urine on the recording (timestamps 00:58:49-00:59:07). The search continued after that dissipation. Continuing a search after the sole articulable basis has been dispelled is per se unreasonable. Rodriguez v. United States, 575 U.S. 348, 355 (2015).

66. To the extent any inventory or other administrative rationale is claimed post hoc, no lawful inventory search was conducted in accordance with standardized CHP protocols, no lawful arrest predicated the search, and no such rationale can be established retroactively. See Florida v. Wells, 495 U.S. 1, 4-5 (1990).

67. Defendants' conduct was intentional and objectively unreasonable. As a direct and proximate result of Defendants' violation of the Fourth Amendment, Plaintiff has suffered the damages alleged in paragraphs 54-56 above.

THIRD CAUSE OF ACTION

Fourth Amendment -- Unlawful Arrest and Detention
(42 U.S.C. § 1983 -- Against Both Defendants and DOES 1-10)

68. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

69. The Fourth Amendment requires probable cause for a warrantless arrest. Probable cause exists when "the facts and circumstances within the officer's knowledge are sufficient [for] a prudent person to believe that the suspect has committed" a crime. Crowe v. County of San

Diego, 608 F.3d 406, 432 (9th Cir. 2010). Probable cause must exist at the time of the arrest and cannot be manufactured after the fact through fabricated observations. Devenpeck v. Alford, 543 U.S. 146, 152 (2004).

70. At the moment Officer Meza-Gonzalez arrested Plaintiff -- at dashcam timestamps 01:11:15-01:11:33, immediately following Plaintiff's exercise of his statutory right to refuse a voluntary PAS test -- Defendants had not observed Plaintiff driving. They had not observed Plaintiff exhibiting any objective sign of impairment on the two hours of dashcam recording. They had identified the only suspected "beverage" in the vehicle as urine. Plaintiff had passed all administered FSTs, or at least Officer Melano had refused to administer certain FSTs, acknowledging the environment made reliable administration impossible. And Plaintiff had lawfully declined the voluntary PAS Officer Meza-Gonzalez himself had just told him he was "not required to do."

71. On those facts, no reasonable officer could have believed there was probable cause to arrest Plaintiff for violation of any Vehicle Code section prohibiting driving under the influence, driving under the influence with a measurable BAC, or operating a commercial vehicle with alcohol present -- and, indeed, no reasonable officer could have believed there was probable cause to arrest Plaintiff for any offense whatsoever.

72. CHP's issuance of the Penal Code section 851.6 Detention Certificate four days later is a formal contemporaneous concession by the arresting agency itself that the arrest lacked "sufficient grounds for making a criminal complaint." Combined with the Alameda County District Attorney's declination to file, the record contains formal admissions from both the arresting agency and the prosecuting authority that there was no probable cause.

73. Defendants' arrest of Plaintiff was intentional and objectively unreasonable. As a direct and proximate result, Plaintiff was subjected to hours-long custody at the roadside, at the

Dublin CHP office, and at Santa Rita Jail, and has suffered the damages alleged in paragraphs 54-56 above.

FOURTH CAUSE OF ACTION

Fourth Amendment -- Judicial Deception and Unlawful
Bodily Intrusion Under a Fabricated Warrant
(42 U.S.C. § 1983 -- Against Defendant Meza-Gonzalez and DOES 1-10)

74. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

75. It is clearly established that a police officer violates the Fourth Amendment by knowingly, deliberately, or recklessly submitting a warrant affidavit containing false statements or material omissions if the affidavit purged of the falsehoods, and supplemented with the omitted material facts, would not support probable cause. Franks v. Delaware, 438 U.S. 154, 155-56 (1978); Chism v. Washington State, 661 F.3d 380, 386 (9th Cir. 2011); Galbraith v. County of Santa Clara, 307 F.3d 1119, 1126 (9th Cir. 2002).

76. Defendant Meza-Gonzalez executed under penalty of perjury a DS-367 Officer's Statement and CHP Arrest-Investigation Report containing the fabrications and material omissions identified in paragraphs 37-40 above. Those documents formed the evidentiary basis for the warrant authorizing the involuntary extraction of Plaintiff's blood at the CHP Dublin Area office. In submitting those documents in support of the warrant, Meza-Gonzalez presented to the reviewing magistrate a materially false and misleading picture of the encounter.

77. Purged of the four fabrications (paragraph 38) and supplemented with the omitted material facts (paragraph 39), the warrant affidavit would not have supported probable cause to

believe Plaintiff was driving or had driven under the influence, and it would not have supported authorization of a bodily intrusion of the magnitude of a compelled blood draw. See Missouri v. McNeely, 569 U.S. 141, 148 (2013) (compelled blood draw is a Fourth Amendment search of significant magnitude).

78. Defendant Meza-Gonzalez's conduct was deliberate. Alternatively, at a minimum, it was reckless: an arresting officer executing a sworn statement in support of a warrant, with contemporaneous audio-video of the same encounter recorded and stored on his own patrol vehicle's equipment, acts with reckless disregard for truth when he sworn-attests to observations that his own recording either omits or affirmatively contradicts.

79. As a direct and proximate result, Plaintiff suffered a compelled bodily intrusion -- a forced needle stick and blood extraction -- without probable cause, and has suffered the further damages alleged in paragraphs 54-56 above.

FIFTH CAUSE OF ACTION

Fourteenth Amendment -- Deliberate Fabrication of Evidence
(42 U.S.C. § 1983 -- Against Defendant Meza-Gonzalez and DOES 1-10)

80. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

81. The Fourteenth Amendment's Due Process Clause prohibits state actors from deliberately fabricating evidence and using it against a person to bring about deprivations of liberty or property. It is clearly established in the Ninth Circuit that a state actor violates due process by deliberately fabricating evidence or continuing an investigation despite pressure to obtain evidence against a person known to be innocent. Devereaux v. Abbey, 263 F.3d 1070,

1076 (9th Cir. 2001) (en banc). It is also clearly established that qualified immunity is not available to state actors who deliberately fabricate evidence. Costanich v. Dep't of Social & Health Servs., 627 F.3d 1101, 1115-16 (9th Cir. 2010).

82. Defendant Meza-Gonzalez deliberately fabricated evidence when he executed under penalty of perjury the DS-367 Officer's Statement and CHP Arrest-Investigation Report containing the four material fabrications identified in paragraph 38 above -- fabrications that are conclusively disproven by CHP's own dashcam recording of the same encounter, which was in Meza-Gonzalez's own agency's exclusive custody at all relevant times.

83. The fabricated evidence was used against Plaintiff to bring about multiple deprivations of liberty and property, including: (a) authorization of the warrant compelling involuntary extraction of his blood; (b) his booking and extended confinement at Santa Rita Jail (including under a parole hold predicated on the fabricated report); (c) the DMV administrative-per-se suspension of his California driver's license, and the commercial disqualification of his Class A CDL, for one full year; and (d) the referral for criminal prosecution (which the District Attorney declined only after the Detention Certificate had already issued).

84. In the alternative, Defendant Meza-Gonzalez continued to press the criminal-investigative theory that Plaintiff had been driving under the influence despite pressure and evidence that no such offense had occurred -- specifically, Officer Melano's contemporaneous identification of the cup as urine, Plaintiff's coherent and articulate demeanor throughout the encounter, Plaintiff's refusal of a voluntary test, and the absence on the recording of any verbalized observation of an alcohol odor. Meza-Gonzalez used investigative techniques (a coerced arrest immediately upon lawful PAS refusal, followed by execution of a sworn statement embellished with fabricated "objective signs") that he knew or should have known would yield false information. Devereaux, 263 F.3d at 1076.

85. As a direct and proximate result of the Fourteenth Amendment violation, Plaintiff has suffered the damages alleged in paragraphs 54-56 above.

SIXTH CAUSE OF ACTION

First Amendment -- Retaliation for Exercise of Statutory Right to Refuse a Voluntary Preliminary Alcohol Screening Test (42 U.S.C. § 1983 -- Against Both Defendants and DOES 1-10)

86. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

87. To state a First Amendment retaliation claim under section 1983, a plaintiff must plead that (i) he engaged in constitutionally protected activity; (ii) the defendant took an adverse action against him; and (iii) the protected activity was a substantial or motivating factor for the adverse action. See Nieves v. Bartlett, 587 U.S. 391, 398-99 (2019); Ballentine v. Tucker, 28 F.4th 54, 62 (9th Cir. 2022).

88. The exercise of a statutory right to refuse a search or investigative procedure that is expressly non-mandatory constitutes constitutionally protected conduct. See Camara v. Municipal Court, 387 U.S. 523, 528-33 (1967). Plaintiff's refusal of the PAS test -- a test that Officer Meza-Gonzalez had just expressly advised was voluntary ("You're not required to do this" at dashcam timestamp 01:10:54) -- was such an exercise, and refusal was itself a form of expressive conduct communicating Plaintiff's non-consent to a discretionary investigative procedure.

89. Within eighteen seconds of that refusal (dashcam timestamps 01:11:15-01:11:33), Officer Meza-Gonzalez arrested Plaintiff. That temporal proximity, together with the absence on the recording of any newly discovered probable cause between the moment of refusal and the

moment of arrest, establishes that the arrest was in retaliation for Plaintiff's exercise of his statutory right to refuse the voluntary PAS.

90. Nieves v. Bartlett does not bar this claim. Under Nieves, a probable-cause defense does not defeat a retaliatory-arrest claim where the plaintiff shows he was arrested when otherwise similarly situated individuals not engaged in the same sort of protected speech had not been. 587 U.S. at 407. Here, Plaintiff had refused an expressly voluntary investigative procedure -- a category of protected conduct for which arrest is patently unlawful, and for which similarly situated non-refusing drivers are not arrested. In the alternative, and as pled in the Third Cause of Action above, there was no probable cause for the arrest at all.

91. As a direct and proximate result of the retaliatory arrest, Plaintiff has suffered the damages alleged in paragraphs 54-56 above.

QUALIFIED IMMUNITY IS NOT AVAILABLE

92. To the extent Defendants assert qualified immunity, the defense fails. Qualified immunity shields government officials only where their conduct does not violate clearly established statutory or constitutional rights of which a reasonable person would have known. Harlow v. Fitzgerald, 457 U.S. 800, 818 (1982); Pearson v. Callahan, 555 U.S. 223, 231 (2009). Each right alleged to have been violated in this Complaint was clearly established, at the level of specificity the Supreme Court has required, well before November 1, 2024.

93. The right to be free from warrantless entry into a private vehicle absent consent, exigency, or an applicable exception was clearly established by Payton v. New York, 445 U.S. 573 (1980); Collins v. Virginia, 584 U.S. 586 (2018); and Caniglia v. Strom, 593 U.S. 194 (2021).

94. The right to be free from a prolonged detention after the sole articulable basis for the encounter had been dispelled was clearly established by Rodriguez v. United States, 575 U.S. 348 (2015), and Illinois v. Caballes, 543 U.S. 405 (2005).

95. The right to be free from arrest without probable cause was clearly established more than half a century before this incident. Beck v. Ohio, 379 U.S. 89 (1964); Dunaway v. New York, 442 U.S. 200, 208-16 (1979); Devenpeck v. Alford, 543 U.S. 146 (2004). And it is beyond debate that a probable-cause determination cannot rest on facts the officer himself fabricated.

96. The right to be free from a warrant obtained through judicial deception -- i.e., the deliberate or reckless inclusion of false statements or the material omission of exculpatory facts in a warrant affidavit -- was clearly established by Franks v. Delaware, 438 U.S. 154 (1978), and, in the Ninth Circuit, by Chism v. Washington State, 661 F.3d 380 (9th Cir. 2011), and Galbraith v. County of Santa Clara, 307 F.3d 1119 (9th Cir. 2002).

97. The right to be free from deliberately fabricated evidence -- and the unavailability of qualified immunity to officers who deliberately fabricate evidence -- is clearly established by Devereaux v. Abbey, 263 F.3d 1070 (9th Cir. 2001) (en banc), and Costanich v. Dep't of Social & Health Servs., 627 F.3d 1101, 1115-16 (9th Cir. 2010). No reasonable officer could have believed, on November 1, 2024, that it was lawful to swear to observations that his own agency's contemporaneous audio-video recording either omitted or contradicted.

98. The right to be free from retaliatory arrest for engaging in constitutionally protected conduct was clearly established by Nieves v. Bartlett, 587 U.S. 391 (2019), and Ballentine v. Tucker, 28 F.4th 54 (9th Cir. 2022). No reasonable officer could have believed, on November 1, 2024, that a driver could lawfully be arrested for exercising a statutory right to refuse a voluntary test the officer himself had just described as non-mandatory.

99. Even setting aside directly on-point authority, an officer can be on notice that his conduct violates the Constitution even in novel factual circumstances, where the violation is obvious. Hope v. Pelzer, 536 U.S. 730, 741 (2002). Fabricating sworn observations to obtain a warrant is not a novel gray area. It is at the core of the constitutional violation the Fourth and Fourteenth Amendments were adopted to prevent.

100. This District's June 29, 2026 screening order in the Serrato action referenced in paragraphs 50 and 52 above -- finding a substantially overlapping factual record sufficient to state plausible constitutional claims -- confirms that the allegations in this Complaint clear the threshold that any qualified-immunity analysis would apply on a motion to dismiss.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff BRENDAN NGWA NFORBI respectfully prays for judgment against Defendants SANTIAGO MEZA-GONZALEZ and JOSE MELANO, in their individual capacities, and each of them, as follows:

A. For general and compensatory damages against each Defendant in his individual capacity, in an amount according to proof at trial, for the injuries alleged herein, including loss of liberty, physical pain and suffering, severe and continuing emotional distress, humiliation, reputational injury, and dignitary harm;

B. For special damages against each Defendant in his individual capacity, in an amount according to proof at trial, including lost wages and lost earning capacity during the one-year commercial driving disqualification (February 20, 2025 through February 19, 2026), continuing career impact from the DMV disqualification event, out-of-pocket expenses arising from the incident, and other economic losses;

C. For punitive damages against each Defendant in his individual capacity, in an amount sufficient to punish and deter, based on Defendants' willful, malicious, and reckless conduct -- including the pre-contact criminal-investigative hypothesis, the persistence of the investigation after the sole articulable basis had been dispelled, the retaliatory arrest for exercise of a statutory right, and the execution under penalty of perjury of a sworn statement embellished with fabrications contradicted by their own agency's contemporaneous audio-video recording;

D. For reasonable attorneys' fees and costs pursuant to 42 U.S.C. section 1988, together with such other and further fees, costs, and expenses of suit as are permitted by law;

E. For pre- and post-judgment interest to the fullest extent permitted by law; and

F. For such other and further relief as this Court deems just and proper.

DEMAND FOR JURY TRIAL

Pursuant to Rule 38 of the Federal Rules of Civil Procedure and the Seventh Amendment to the United States Constitution, Plaintiff hereby demands a trial by jury on all issues so triable.

Dated: August 7, 2026

Respectfully submitted,

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BRENDAN NGWA NFORBI

Plaintiff, In Pro Per